

Court No. - 7

Case :- WRIT - C No. - 7851 of 2024

Petitioner :- Smt. Sabiya Khatoon

Respondent :- Executive Engineer Madhyanchal Vidhut Vitran
Nigam Ltd. And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Neera Yadav

Hon'ble Alok Mathur,J.

1. Heard Sri Rakesh Kumar Yadav, Advocate holding brief of Ms. Neera Yadva, learned counsel for respondents prays for and is granted two days' time to seek instructions with regard to the papers to be produced by the petitioner for obtaining an electricity connection. Any other formality to be completed by the petitioner shall also be informed to this Court on the next date of listing.

2. List this case on 17.09.2024 in top ten cases.

(Alok Mathur, J.)

Order Date :- 11.9.2024

Ravi/

Court No. - 7

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Petitioner :- Smt. Sabiya Khatoon

Respondent :- Executive Engineer Madhyanchal Vidhut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Neera Yadav

Hon'ble Alok Mathur,J.

1. Heard Sri Nripendra Mishra, learned counsel for the petitioner as well as Sri Rakesh Kumar Yadav, Advocate holding brief of Ms. Neera Yadav, learned counsel for the respondents.

2. Grievance raised by the petitioner in the present writ petition is with regard to non grant of electricity connection in the premises situated at Mohalla - Barhiyapura City, District - Bahraich. In the said premises electricity connection was also existing bearing Electricity Connection No. 3564604000 in the name of husband of petitioner namely Zafar Ali and all the bills were being paid. Subsequently, a dispute arose between two brothers namely Zafar Ali and Aslam Ali, due to which the electricity connection of the premises was permanently disconnected.

3. In the aforesaid circumstances, the petitioner had moved an application for grant of electricity connection and also moved a representation dated 26.09.2023 and subsequently, the petitioner filed a civil suit seeking mandatory injunction for grant of electricity connection. In the civil suit no direction was given in favour of petitioner and accordingly order dated 06.04.2024 has been assailed before this Court in the present writ petition.

4. Learned counsel for the petitioner after arguing the matter up to some length had submitted that once application has been made by the petitioner then even if, the petitioner is not owner of the property, as per Electricity Supply Code, 2005, after obtaining indemnity bond, electricity connection can be granted and accordingly submits that he does not press his prayer no. II assailing the order dated 06.04.2024, passed by the Civil Judge (Senior Division), Bahraich and order dated 23.07.2024, passed by the District Judge, Bahraich.

5. Accordingly, aforesaid prayer made by the petitioner is allowed. He is permitted to delete prayer no. II from the memo

of writ petition during course of the day.

6. Considering the fact that prayer made in the present writ petition seeking mandamus for directing the respondents to provide electricity connection, the present writ petition now be maintainable before the Division Bench of this Court.

7. Accordingly, Registry is directed to place the paper book of this case before the Division Bench with expedition, preferably in the next week.

Order Date :- 17.9.2024

A. Verma

(Alok Mathur, J.)

Court No. - 3

Case :- WRIT - C No. - 7851 of 2024

Petitioner :- Smt. Sabiya Khatoon

Respondent :- Executive Engineer Madhyanchal Vidhut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Neera Yadav

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Brij Raj Singh,J.

Shri Nripendra Mishra, learned counsel for the petitioner prays that the writ petition be dismissed as withdrawn with liberty to the petitioner to file afresh.

Accordingly, the writ petition is dismissed as withdrawn with liberty as aforesaid.

Shri Rakesh Kumar Yadav, Advocate holding brief of Ms. Neera Yadav, learned counsel for the respondents has no objection.

Order Date :- 26.9.2024

Pks